

**[The following practice midterm was drafted by the CivPro Tutors for
2025, with edits made by Prof. Lanham]**

Civil Procedure Practice Midterm

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PART I: Multiple Choice (8 questions)

1) Under the modern plausibility approach for evaluating a complaint in federal court:

- A. Courts credit all allegations, including conclusory labels.
- B. A complaint survives if any set of facts could be imagined to support it.
- C. Plaintiffs must plead detailed evidence, using witness deposition testimony, and must submit authenticated documents.
- D. Courts disregard conclusory assertions in the Complaint and ask whether remaining factual content plausibly suggests liability.

2) P is hit in a car crash by a driver for Trucking Co. P unfortunately dies from the injuries. P's survivor sues Trucking Co., in federal court. However, because P has passed away, P's survivor cannot confirm what happened with P. Therefore, in the Complaint, P's survivor alleges, in the alternative, that (i) Trucking Co.'s driver ran the red light, or (ii) Brakes-R-Us, the brake-maintenance contractor that provides truck maintenance for Trucking Co.'s fleet, negligently serviced the fleet and Trucking Co. negligently failed to recognize that. Before discovery, Trucking Co. moves to strike the inconsistent theories from the Complaint. What should the court likely do?

- A. Strike the alternatives; inconsistency is forbidden.
- B. Allow alternative and inconsistent theories at the pleading stage.
- C. Require P's survivor to pick one of the two theories immediately.
- D. Dismiss the Complaint unless P's survivor attaches expert reports examining the truck's brakes.

3) In a federal civil case, during rolling discovery productions, Firm A accidentally produces 15 privileged emails. But Firm A promptly notifies the opponent and shows that Firm A had used reasonable screening steps to

prevent accidental production. However, Opponent refuses to return the emails. The federal court would likely hold:

- A. Privilege is automatically waived by any inadvertent disclosure.
- B. No waiver if the producing party took reasonable steps to prevent and then promptly rectify the accidental disclosure.
- C. Whether or not the privilege was waived depends only on the number of pages that were disclosed.
- D. In federal court, privilege can never be clawed back once opposing counsel reads the emails.

4) Two days after an explosion at a chemical plant, in-house counsel for the chemical company commissions a technical report examining the root causes of the explosion. The company must also file a report with the Securities and Exchange Commission (an agency of the federal government) stating that there was an explosion. Injured workers sue the company in federal court, and during discovery, the injured workers move to compel disclosure of the company's internal report. Which is most accurate?

- A. Work product if prepared because of anticipated litigation.
- B. Not work product because the company was also required to file a report with the government.
- C. The internal report certainly consists solely of opinion work product, which is not discoverable.
- D. Never work product unless outside trial counsel retained the engineers who conduct the technical report, and here it was in-house counsel.

5) Eighteen months into litigation, on the eve of summary-judgment briefing, P moves to add a new negligence theory to their Complaint, based on facts that D has known from the start of the case. No new discovery would be required.

D opposes the motion, claiming “undue delay” and “prejudice” because D had already planned its strategy around the original pleading. Best result?

- A. Deny the motion for leave to amend, because any late amendment is undue delay.
- B. Grant the motion for leave to amend, because the mere passage of time without concrete prejudice to the defense on the merits is not a sufficient reason to refuse amendment.
- C. Deny the motion for leave to amend unless P shows “extraordinarily good cause.”
- D. Grant the motion for leave to amend only if P pays D’s attorney fees.

6) Plaintiffs bring a disgorgement-style claim seeking defendant’s profits for an alleged statutory privacy violation. The statute is silent on jury trials. What’s the strongest analysis of the jury right?

- A. No jury trial right, because profits are always equitable.
- B. The jury-trial right attaches, because the statute is modern.
- C. Analyze the claim’s historical analogue and the nature of the remedy sought.
- D. The jury-trial right turns solely on legislative silence.

7) Plaintiffs allege that competing firms fixed text-messaging prices. The complaint pleads: (i) near-simultaneous price hikes by all of the companies; (ii) public statements, within a two-month span, from each of defendants’ CEOs about the need for maintaining “price stability” in such a concentrated market; (iii) an internal email at one firm, stating “we’ll follow [other firm]’s lead this quarter”; (iv) a guest register at a resort in the Rocky Mountains showing that all of the defendants’ CEOs stayed at the lodge on the same weekend during a conference of telecommunications companies. Which statement best captures how the court should evaluate the sufficiency of the complaint?

- A. In every case, parallel price increases are certainly sufficient, by themselves, to show an unlawful price-fixing conspiracy.
- B. To be sufficient, a complaint must affirmatively exclude all innocent explanations for the conduct.
- C. Circumstantial plus factors, such as opportunities to conspire and suggestive statements, can make it plausible that companies agreed to fix prices, even if innocent explanations exist.
- D. Direct “smoking-gun” evidence is required at the pleading stage.

8) A client emails outside counsel: “I’m being sued for infringing on a competitor’s patent. I probably put in my application for a patent after they did. Can we just backdate my application so it looks better?”

Counsel replies by email: “No, that is not lawful—and strategically, it’s not a good idea, either, because your competitor will be able to just dig up your initial application form that the government has on file.”

Client replies by email: “I think strategically it’s fine—they’re not too bright over there at my competitor, so I doubt they’ll think to look into this. So please go ahead and draft a version that backdates our patent application to last year so we can defeat the competitor’s claim.”

Counsel sends client the properly dated application, and once again warns against backdating.

During discovery, the client’s competitor moves to compel production of the email chain. Should the court compel production?

- A. Yes, the emails should be disclosed because the client mentioned litigation and any litigation-related communications lose privilege.
- B. No, the emails are privileged, because the lawyer refused to participate in the client’s plan.

C. Yes, the emails should be disclosed because they are not privileged, as the client sought the lawyer's services in furtherance of fraud (backdating to mislead), even if the lawyer refused to help.

D. No, the emails are privileged because the only way to destroy privilege is to carry out a fraudulent plan, not just to *attempt* to carry out a fraudulent plan.

PART II: ESSAY QUESTION

Pamela works for Demolitions Co. in the state of O’Quinn. Demolitions Co. is a company that manufactures explosives, using a variety of chemicals, for use in construction. Pamela has been working at Demolitions Co. since 2014, and she works in parts of the factory where various chemicals are present.

In early 2024, Pamela developed a serious long-term illness. In 2025, Pamela sued Demolitions Co., in O’Quinn state court, alleging that exposure to toxic substances at the factory caused her illness. Under the relevant O’Quinn state law, a plaintiff can win such a lawsuit by showing that: (a) they were injured or became seriously ill, (b) because of exposure to toxic substances in the workplace, and (c) the illness or injury resulted in monetary damages to the plaintiff. Notably, O’Quinn state courts use precisely the same rules for Discovery and Summary Judgment as a federal court would.

Pamela’s case proceeded to discovery, and after full discovery, Demolitions Co. moved for summary judgment. The following is all of the relevant evidence that emerged during discovery:

- A copy of notes made by Pamela’s doctor at her initial consultation in 2024 were produced, and the notes state, in relevant part, “probably caused by workplace exposure.”
- Demolitions Co. deposed Pamela’s doctor. In the deposition, the doctor was asked what caused Pamela’s illness and was asked why the notes said that it was caused by workplace exposure. The doctor responded: “It could have been anything that caused this particular illness. Toxic chemicals can cause it, but so can exposure to stuff that’s in lots of people’s drinking water, if there’s something wrong at the water treatment plant. I just don’t like big corporations, and I know she works for a giant company, so my initial guess was workplace exposure—you and I both know those big corporations are all crooks! But yeah, I don’t know one way or the other what led to this illness—I just treat the symptoms.”
- Demolitions Co. also deposed Pamela. When asked about toxic chemicals at the factory, Pamela responded, “We definitely have some pretty serious chemicals onsite; they have hazardous materials labels on them, as required by federal law. And we do have to use protective gear and all that jazz. I’ve always been pretty good about wearing my protective gear, and so are most of my coworkers. But I mean, it’s a huge factory, with tons of employees, including folks on the night shift

who might be tired while they're working. So do I think there's a good chance somebody didn't handle a chemical right and it got out of containment and contaminated somewhere I was? Yeah, I think that's a pretty good chance. And I bet that's what happened here—especially because my doctor said at our first visit that it was probably workplace exposure that made me sick.”

- In her deposition, Pamela also stated, “I have been extremely ill for the last 18 months. In total, I think it's cost me about \$100,000 in medical bills out of pocket, at least.”
- Pamela produced receipts showing \$99,600 in medical bills over the last 18 months.
- Pamela deposed the CEO of Demolitions Co. The CEO was asked whether there are any toxic chemicals at the factory. The CEO responded: “Of course some of the explosives we manufacture involve chemicals that could be toxic in the right scenario. Most of those chemicals, for example, should not be ingested by anyone ever. But we have extremely good safety protocols at our factory, and we have not had a single reported instance where someone was physically exposed to any of the toxic chemicals onsite, unless they were wearing proper protective gear to avoid any direct exposure.”

Question: You are a law clerk for the judge who is handling Pamela's lawsuit. Recall that Demolitions Co. has moved for summary judgment. In response, Pamela argued that summary judgment was inappropriate, and that the case should proceed to trial. Your judge asks you to write an **objective memo, in IRAC form, advising the judge whether to grant or deny Demolitions Co.'s motion for summary judgment.** Your judge suggests not writing more than **700 words maximum.**

END OF EXAM